

September 25, 2013



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15257
(FIRST REVISION)

EXPIRATION DATE: August 31, 2017

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: GFS Chemicals
Columbus, OH
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation of certain materials, in a short distance from one facility to another, in intermediate bulk containers (IBC) not otherwise authorized. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.243(d)(1)(i) in that IBCs may not be used for PG I liquids, except as provided herein.
5. BASIS: This special permit is based on the application of GFS Chemicals dated August 26, 2013, submitted in accordance with § 107.109.

September 25, 2013

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Perchloric acid with more than 50 percent but not more than 72 percent acid, by mass	5.1	UN1873	I

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Prescribed packaging is a 330 gallon intermediate bulk container certified to the UN 31H2/Y/1.9 standard.
- b. OPERATIONAL CONTROLS - Transportation is authorized only from 800 McKinley Avenue to Fisher Road to 800 Kaderly Drive both in Columbus, Ohio, about a distance of 5 miles when the container is full and reversing the trip to return the empty container.
- c. A container of soda ash must be transported along with the hazardous material in an amount(not less than 1700 pounds)sufficient to neutralize the acid in the event of a leak or spill.
- d. Not more than two (2) round trip shipments per week will be made.
- e. The packaging authorized under the terms of this special permit may not be used for storage of the hazardous materials, only for transportation.
- f. The valves in the bottom outlet must be constructed of Teflon to minimize potential leaks.
- g. Each IBC must be visually inspected and determined to have no noticeable deterioration prior to refilling.
- h. The IBCs must be removed from service when recertification is due.

September 25, 2013

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

September 25, 2013

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)–“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Hwang/kah